

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
OMAR MALLOON

Plaintiff (s)

SUMMONS

-against-

INDEX No.:

THE CITY OF NEW YORK, NYPD POLICE OFFICER
THOMAS QUEVEDO SHIELD # 5154, JOHN DOE #1 -5,
IN OFFICIAL AND
INDIVIDUAL CAPACITY,

Defendants,
-----X

To the above named Defendant (s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Westchester, New York
May 18, 2022

Respectfully submitted,



William T. Martin & Associates
Attorney for Plaintiff OMAR MALLOON
108 Village Sq., Ste. 143
Somers, New York 10589
(914) 960-3288

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
OMAR MALLOON

Plaintiff (s)

-against-

COMPLAINT

INDEX No.:

THE CITY OF NEW YORK, NYPD POLICE OFFICER
THOMAS QUEVEDO SHIELD # 5154, JOHN DOE #1 -5,
IN OFFICIAL AND
INDIVIDUAL CAPACITY,

JURY DEMAND

Defendants,
-----X

Plaintiff OMAR MALLOON, by and through his attorney, WILLIAM T. MARTIN, Esq.,
complaining of the defendants herein, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This is an action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the United States Constitution, and the laws of the State of New York.
2. Plaintiff OMAR MALLOON is an African- American male, resident and citizen of City of New York, State of New York and the United States of America.
3. Plaintiff is a United States citizen who was deprived of his constitutional and common law rights when defendant NYPD POLICE OFFICERS JOHN DOE #1 -5, ARRESTED AND TASED THE PLAINTIFF FOR NO LEGITIMATE REASON.
4. Plaintiff's claim was the subject of a 50H hearing and the claims have not been redressed and more than 90 days have elapsed since the 50H hearing.

PARTIES

5. Plaintiff, OMAR MALLOON (hereinafter "MALLOON ") was a resident of the City and State of New York when the cause of action accrued.

6. The City of New York, (hereinafter "CITY") at all times relevant herein, operated and maintained a court system within the CITY with courts located in all five boroughs, and staffed with employees who perform and performed various functions and services, to wit maintaining a probation department within the court system that it oversaw and operated.

7. At all times relevant herein, NYPD OFFICER Thomas Quevedo, shield # 5154 (hereinafter "QUEVEDO") was employed by the New York City Police Department and apropos to the averments in the complaint was acting within the scope of their employment.

8. At all times relevant herein, NYPD OFFICERS JOHN DOE # 1 – 5 were always employed by the New York City Police Department and apropos to the averments in the complaint was acting within the scope of their employment.

JURISDICTION

9. The incidents complained of in the instant complaint all occurred within the confines of the CITY of New York, to wit Staten Island.

STATEMENT OF FACTS

10. On or about May 20, 2019, at approximately 7:00 p.m. in the vicinity of Palma Drive and Hanover Avenue in Staten Island the plaintiff Malloon was pulled over by defendant Quevedo while operating a motor vehicle.

13. At or about the above time and date in the vicinity of Palmer Avenue and Hanover Avenue defendant Quevedo pulled over a rented car (2019 White Dodge Challenger) which the plaintiff was driving, with the permission of the lessee who was also present at the scene.

14. Quevedo pulled the vehicle over which Malloon was operating for no legitimate reason and learned that the vehicle was rented. The person who had rented the car approached the officer and the car which she had legitimately rented to ascertain what the problem was. And

moreover, if there was a problem, she'd drive it because at that time because Malloon was on the way to the store in the vehicle to get them some food.

15. After this illegal stop without probable cause the defendant Quevedo was joined by defendants John Doe # 1 -- 5. After some conversation with the renter of the vehicle the police decided to remove Malloon from the car without his assistance.

16. While the plaintiff was being forcibly removed from the vehicle he inquired what was going on when they asked him to put his hands behind his back while they arrested him. At no time did Malloon resist the officer who removed him from the vehicle but that officer proceeded to tase him multiple times for no apparent reason. And stated, in sum and substance, "stop resisting" when it was apparent to on lookers that he wasn't resisting and this "directive" was a sham.

15. At or about this time defendants John Doe # 1 -5 joined in and Malloon was placed in a choke hold and tased again while on the ground. At no time did the plaintiff fight back or resist arrest: his only concern which he voiced was why was he being arrested under the circumstances where the renter (who was present) told them he had permission from her to use the car to go get some food.

16. The police defendants after assaulting the plaintiff had to take him to the hospital for his injuries. After he was treated at the hospital he was taken back to the precinct where he spent the night before appearing in court.

17. Malloon was released on his own recognizance when he was arraigned the next day. Mallonn was given an adjourn date in July and upon information and belief when he returned on the adjourn date the case was dismissed by the Richmond County DA.

18. On or about August 30, 2019, plaintiff filed a notice of claim against the defendants.

FIRST CAUSE OF ACTION**MALICIOUS PROSECUTION**

19. Plaintiff Malloon repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1 " through "18" with the same force and effect as if more fully set forth at length herein.

20. That the individual defendants QUEVEDO and NYPD POLICE OFFICERS JOHN DOE # 1 - 5. brought charges against plaintiff Malloon that were false, which they knew or should have to be false through the exercise of due diligence, and a thorough investigation consistent with their duties.

21. That plaintiff Malloon's prosecution and the threat of incarceration on the false allegations, was the direct result of the actions of the individual defendants; which they knew or should have known were false; and based on the false statements of "individual" defendant QUEVEDO and NYPD POLICE OFFICERS JOHN DOE # 1 – 5 the plaintiff was arrested and deprived of his liberty by white officers who seemed to be racially motivated..

22. That the charges and prosecution of plaintiff Malloon was reckless, wanton, and malicious without any regard to the truth of the allegations, and/or the defendants' conduct was in clear derogation of the plaintiff's rights.

23. The defendants knew that their charges were false, that Malloon was being framed and it was clear that he was incapable of being arrested for the charges they had fostered.

24. That by reason of the forgoing, plaintiff MALLOON suffered serious economic and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00) each.

SECOND CAUSE OF ACTION

INFLECTION OF EMOTIONAL DISTRESS

25. Plaintiff MALLOON repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1 " through "24" with the same force and effect as if more fully set forth at length herein.

26. That the defendants knew or should have known that they were filing false charges which were designed to inflict severe emotional distress and psychological damages to the plaintiff who was aware of his innocence.

27. That the acts of the defendants caused emotional damage and suffering, anxiety, nervousness, insomnia, and public humiliation.

28. That the defendants knew or should have that their actions were likely to cause upsetment and depression, and countless hours of anguish which the arrest on false charges was likely to cause emotional damage and injury to the plaintiff.

29. That the plaintiff, who was a victim of a crime (police brutality), was mistreated, humiliated and his report of the incident was disregarded, for no apparent reason, and he was arrested on allegations which were easily refutable.

30. The arrest on these trumped charges: resulted in mental anguish, incarceration for 24 hrs., and prosecution which signaled an arduous emotional journey from the night of the arrest until the charges were dismissed by the Richmond County DA.

31. That by reason of the forgoing, plaintiff Malloon suffered serious economic and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00) each.

THIRD CAUSE OF ACTION**Negligent Hiring, Retention, Training and Supervision**

32. Plaintiff MALLOON repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1 " through "31" with the same force and effect as if more fully set forth at length herein.

33. That the defendants Quevedo and NYPD POLICE OFFICERS DOE# 1 - 5, CITY and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the defendants Quevedo and NYPD POLICE OFFICERS DOE# 1 - 5, who were unfit for the performance of police duties on May 20, 2022, who also prepared and filed false accusatory documents to cover their illegal conduct at the above-mentioned location.

34. The failure of the defendant CITY to hire, retain, train, supervise, discipline, discharge or in any other way adequately control the behavior of defendants Quevedo and NYPD POLICE OFFICERS DOE# 1 - 5 in the exercise of their police functions, and their failure to enforce the laws of the State of New York and the regulations of N.Y.P.D is evidence of the reckless disregard for the rights of the public, including plaintiff, and exhibited a lack of guidance and direction which prudent and reasonable individuals would display in employing persons to work for the N.Y.P.D.

35. Further defendant CITY countenances, condones, ratifies the continued employment of the defendants Quevedo and NYPD POLICE OFFICERS DOE# 1 - 5 even though they are/were made aware of the ultra-various acts of said defendant police officers (dismissal of charges) and such forbearance, without consequences, fosters an atmosphere of lawlessness and implicit acceptance of falsifying accounts of criminality against the citizenry with impunity.

36. Such conduct has flourished and allowed to the exist and has created a culture of lawlessness that is carried out willfully, wantonly, maliciously and with reckless disregard for the rights of minorities in general and plaintiff Malloon's constitutional rights, specifically.

37. That by reason of the forgoing, plaintiff suffered economic and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00).

FOURTH CAUSE OF ACTION
AGAINST THE CITY OF NEW YORK

38. Plaintiff MALLOON repeats, reiterates and re-allege each and every allegation contained in paragraphs marked "1 " through "37" with the same force and effect as if more fully set forth at length herein.

39. That as an employer of the defendants Quevedo and NYPD POLICE OFFICERS DOE# 1 - 5 at the times of their intentional conduct, as set forth herein, the defendant CITY is liable to the plaintiff Malloon under the laws of the defendant CITY and State of New York, for allowing said individual defendants to, while under color of law, deny the plaintiff due process and equal protection of the law, while active members of the NYPD, who arbitrarily and capriciously disregarded the allegations of a plaintiff/victim and failed to properly and thoroughly investigate the plaintiffs allegations against his assailants.

40. Moreover, that as a direct and proximate cause/result of the aforesaid acts and omissions by the defendants Quevedo and NYPD POLICE OFFICERS DOE# 1 - 5; the plaintiff Malloon has been made to suffer general, pecuniary and compensatory damages.

41. That the CITY was informed by the Richmond County DA that the false charges were dismissed and the CITY retained the individuals in their employ and by reason of the forgoing,

plaintiff Malloon suffered serious economical and emotional injuries all to his damage in the sum of One Million Dollars (\$ 1 000,000.00) each.

WHEREFORE, Plaintiff Malloon request judgment against the individual defendants Quevedo and NYPD POLICE OFFICERS DOE# 1 – 5, and defendant CITY, as follows:

1. As against the individual defendants Quevedo and NYPD POLICE OFFICERS DOE# 1 – 5, JOINTLY AND SEVERALLY General and Compensatory damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00) on the causes of action herein,

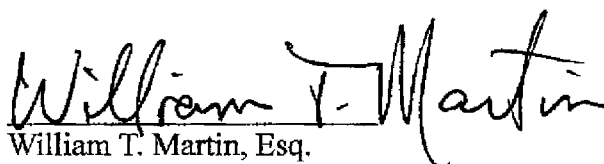
2. As against the individual Defendants the defendants the defendants the defendants the defendants Quevedo and NYPD POLICE OFFICERS DOE# 1 – 5 JOINTLY AND SEVERALLY punitive damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00) on the causes of action herein, and;

3. As against Defendant CITY OF NEW YORK, General and Compensatory damages in the sum. Of TWO MILLION DOLLARS (\$2,000,000.00) on the Sixth Cause of action asserted against it, and

4. Cost of this action,

5. And such other and further relief as may deem to be just and proper.

Dated: Westchester. New York
May 18, 2022


William T. Martin, Esq.
108 Village sq., Ste. 143
Somers, N.Y. 10589
(914) 960-3288

VERIFICATION

STATE OF NEW YORK :

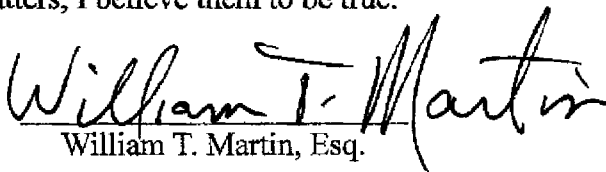
: ss.:

COUNTY OF WESTCHESTER :

I, William T. Martin, Esq. being an attorney do hereby affirm and state under the penalties of perjury that:

I am verifying the contents of the instant Complaint due to the fact that my client does not reside in the county where I maintain my offices.

I have read the foregoing complaint and know the contents to be true. The averments therein are true to the best of my knowledge, except as to the matters therein stated to be alleged on information and belief and as to those matters, I believe them to be true.


William T. Martin, Esq.